

**LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT**

Mst. Rasheedan Vs. Abdul Sattar (deceased)
represented through LRs, etc.

Date of hearing:	<u>17.06.2025</u>
Petitioner by:	Mian Anwar Mubeen Ansari, Advocate.
LRs of respondent No.1 by	Mr. Muhammad Ali Siddiqui, Advocate.

2. Briefly, the facts as discernible from the plaint are that the parties are successors-in-interest of their father Ashraf Ali (deceased). It was averred in the plaint that Abdul Sattar, predecessor-in-interest of the respondents, during the ailment of their deceased father, with mala fide and collusiveness got attested Tamleek Mutation No.1874 dated 28.06.1987, thereby depriving Mst. Rasheedan (petitioner), Mst. Shakoori, and Mst. Shakila, daughters of the deceased, of their legal and Islamic shares. It was further contended in the plaint that their father was suffering from falij (paralysis) and was not even able to speak, hear, or walk, and that the report of the Halqa Patwari is suspicious, while the thumb impression affixed on the rapat roznamcha was also fake and fictitious, allegedly affixed with the connivance of the revenue field staff. The petitioner asserted that the deceased never made a valid Tamleek, and that

the entire proceedings in the revenue record were based on fraud and therefore liable to be set aside.

3. The suit was contested by defendant No.1/Abdul Sattar through filing a written statement. After framing of issues, recording of evidence, and hearing the learned counsel for the parties, the suit instituted by the petitioner was decreed vide judgment and decree dated 28.02.2009 by the trial court. Feeling aggrieved, Abdul Sattar, predecessor-in-interest of the respondents, preferred an appeal which was accepted vide judgment and decree dated 04.11.2010 passed by the learned Additional District Judge, Multan, thereby reversing the judgment and decree of the trial court. Hence, this revision petition.

4. Learned counsel for the petitioner contends that the claim of Abdul Sattar that his father Ashraf Ali (donor) made the impugned Tamleek on 28.06.1987 is contradicted by the copy of roznamcha Ex.D1, wherein it is recorded that on 16.05.1987 the donor appeared and got a rapat recorded in the Roznamcha Waqiat. He adds that there is nothing on record to suggest that the donor declared his intention and that the Tamleek was accepted by the donee or that, in pursuance of the declaration, possession of the impugned property was handed over to the respondents. He argues that mere entries in the revenue record do not create any right or title depriving the real daughters of their shares in the estate of the deceased. Hence, the impugned judgment and decree passed by the appellate court is not sustainable. Learned counsel while referring paragraph Nos.9 & 10 of the impugned judgment states with vehemence that findings rendered in both these paragraphs are not only contradictory but also lack judicial consistency, which under the law is imperative while deciding a lis/appeal. He further contends that the trial court, having the best opportunity to assess the demeanor of the witnesses, has rightly decreed the suit of the petitioner after thoroughly scanning the evidence, considering the material on record, and appreciating the law on the subject, whereas such well-reasoned findings have erroneously been reversed by the appellate court, through the impugned judgment, which is liable to be set-aside.

5. Conversely, learned counsel for the respondents submits that the impugned mutation was validly executed by the predecessor-in-interest of the parties and was never challenged by the petitioner during the lifetime of Ashraf Ali. He argues that the essential ingredients of a valid gift, offer, acceptance, and delivery of possession, were fully established. He further contends that the disputed mutation was sanctioned in 1987, while the suit was instituted on 04.06.2002, after an unexplained delay of 15 years. Therefore, the suit was barred by limitation, a fact which the trial court failed to consider. Finally, he submits that the petitioner has failed to prove the alleged fraud and misrepresentation through any cogent and convincing evidence, and as such, the impugned judgment and decree of the appellate court does not suffer from any legal infirmity.

6. Arguments heard. Record perused.

7. The pivotal question for determination before this Court is whether the appellate court was justified in reversing the findings of the trial court on issue No.2, which pertained specifically to mutation No.1874 dated 28.06.1987, resulting in the dismissal of the petitioner's suit.

8. It is observed that the appellate court, while rendering the impugned judgment, had itself, in paragraph No.9, affirmed the finding of the trial court regarding the invalidity of the alleged gift (tamleek) and specifically held that the respondent/defendant No.1 failed to discharge the burden of proving the essential ingredients of a valid gift. However, in stark contradiction, in paragraph No.10 of the very judgment, the appellate court has inexplicably reversed the finding of the trial court on issue No.2, which was based on a correct appraisal of evidence and law. This contradictory approach is patently untenable in law. It is a settled principle that once a court has conclusively affirmed a factual finding on a material issue, particularly relating to the validity of the main transaction, it cannot, without lawful justification or cogent reasons, render a subsequent finding that directly negates its own earlier conclusion. Such an approach is contrary to settled judicial norms and violates the doctrine of consistency in judicial reasoning. Such findings of fact cannot be contradicted by

subsequent inconsistent observations within the same judgment unless supported by sound legal grounds and clear reasoning.

9. In the present case, the appellate court failed to assign any lawful, convincing, or cogent reasons for departing from its own admitted finding recorded in paragraph No.9. The contradictory stance adopted in paragraph No.10 renders the impugned judgment legally unsustainable and a result of misreading and non-reading of evidence. Such an error is an obvious miscarriage of justice warranting interference by this Court in the exercise of its revisional jurisdiction. Reliance in this regard can be placed on the case titled “CHAIRMAN PAKISTAN ORDNANCE FACTORIES, POF BOARD, WAH CANTT vs. AKHTAR TANVEER and others” (2025 SCMR 374), wherein the Hon’ble Supreme Court of Pakistan has held as under: -

“8. Judicial discretion must be exercised judiciously and transparently, based on established principles and sound reasoning. As Lord Woolf stated, discretion enables the court to achieve justice on a case-to- case basis while respecting the framework of legal rules. This balance enhances justice and will reduce litigation and the overturning of decisions by this Court, thus increasing predictability and certainty, both of which are crucial aspects in upholding the rule of law and maintaining public confidence in the legal system. This cohesive harmony is not possible if discretion is exercised arbitrarily, without adhering to settled principles in law as established by this Court and by ignoring principles of fairness, equity and adherence to law....”

10. A careful perusal of the impugned judgment and decree reveals that the appellate court reversed the findings of the trial court primarily on the ground that Abdul Sattar (defendant) had established his claim of Tamleek through cogent and convincing evidence; that Ashraf Ali, the predecessor-in-interest, did not challenge the said mutation during his lifetime; Tamleek mutation was sanctioned in 1987, whereas Ashraf Ali passed away in 1999. Additionally, it was held that Abdul Sattar remained in possession of the suit property. However, a bare examination of the record demonstrates that Abdul Sattar, even in his written statement, failed to disclose the specific date, time, place, or the names of witnesses before whom the essential ingredients of a valid Tamleek i.e. offer, acceptance,

and delivery of possession allegedly took place. These fundamental omissions not only cast serious doubt on the authenticity of the alleged Tamleek but also render the claim of the donee legally unsustainable.

11. The appellate court, while reversing the finding on issue No.2, did not assign sound or cogent reasons to disregard the well-founded findings of the trial court. Minor inconsistencies in the petitioner's evidence do not outweigh the failure of the defendant to prove the core ingredients of a valid gift. The appellate court, while reversing the finding, overlooked settled legal principles and misapplied its jurisdiction.

12. It is also noted that defendants No.2 and 3, who are the real sisters of the petitioner and defendant No.1, were proceeded against ex-parte during the proceedings before the trial court and were never produced as defence witnesses to support the stance of respondent/defendant No.1 (Abdul Sattar). Further said Abdul Sattar appeared in the witness box as DW-1 and deposed that 33 Biggas and few Marla of land were gifted to him by his father through the impugned Tamleek mutation on 28.06.1987 and its possession was also delivered. He further claimed that his father was healthy and had called his daughters three to four months prior to Tamleek to obtain their consent. However, no written consent or independent witness of such consent, offer, acceptance, or delivery of possession was ever produced in evidence. The alleged justification for disinheriting the real daughters on the ground of love and affection is seriously questionable. Even if the purported intention behind the Tamleek was claimed to be pious, it is inconceivable how depriving daughters of their Shariah-mandated inheritance could be treated as an act of virtue. The Holy Quran unequivocally guarantees the rights of daughters in their father's estate. Any attempt to defeat this divine commandment through a dubious transaction is not legally sustainable.

13. The documentary evidence relied upon by the defendant in this regard is equally deficient. The document (Exh.D1) i.e. Rapat Roznamcha Waqiyati, dated 16.05.1987 allegedly records a statement by Ashraf Ali, but it does not mention the actual offer, acceptance, or delivery of

possession. The impugned mutation No.1874 dated 28.06.1987 was attested more than a month later of entering the said Rapat Roznamcha and failed to disclose when or where the Tamleek was made or accepted. There is not a single independent witness of these essential acts, nor any corroborative material was placed on the record to prove physical delivery of possession. These material lacunas fatally undermine the validity of the alleged Tamleek.

14. The law is settled that immovable property can be gifted orally, but the donee must establish three ingredients beyond doubt, (i) declaration of gift by the donor, (ii) acceptance by the donee and (iii) delivery of possession. The trial court has rightly relied upon the judgment rendered by this Court, reported as “Raja Muhammad Yasin vs. Zaitoon Begum and others” (1993 CLC 2448), wherein it was held that a gift transaction, particularly one aimed at excluding legal heirs, must be proved with strict compliance of the legal requirements and any deviation renders the gift void. In the present case, all three essential ingredients are lacking in evidence, and the surrounding circumstances strongly suggest that the alleged Tamleek was nothing more than a colourable device to deprive lawful heirs of their inheritance. Furthermore, the apex Court has consistently held that where a transaction of gift results in disinheritance of legal heirs, the burden to prove the gift with strict and satisfactory evidence lies heavily on the donee, which in the present case, has not discharged.

15. The Hon’ble Supreme Court of Pakistan in a recent authoritative pronouncement reported as “Mst. Aksar Jan and others v. Mst. Shamim Akhtar and others” (2025 SCMR 88) has strongly deprecated the practice of depriving female legal heirs of their rightful inheritance through fabricated gift mutations and dubious documents. The relevant extract of the judgment is hereby reproduced hereinafter: -

“5. The inheritance shares in the estate left by a Muslim is stipulated in the Holy Qur’an and a deceased’s legal heirs become owners on his/her death. Unfortunately, and all too often, females continue to be deprived of their inheritance by employing various nefarious tactics, bogus documentation,

fraudulent statements with the facilitation of Revenue department officials and some advocates. The courts too at times are not vigilant enough to protect inheritance rights, particularly of females and other vulnerable members of society. And, simple cases such as this one are not expeditiously decided, and when they do get decided the decision is assailed. The practice of depriving females of their inheritance must be put a stop to, and those who do so must be made to pay substantial costs and not be permitted to benefit from procedural technicalities.”

16. Now comes to the point of limitation. The trial court rightly held while deciding the issue No.9 that the suit was within time, as the petitioner gained knowledge of the fraudulent Tamleek after the death of her father Ashraf Ali, which finding was upheld by the appellate court. It is a settled principle that when fraud is alleged, limitation begins to run from the date of knowledge. Reliance is placed on “Baja through L.Rs. and others v. Mst. Bakhan and others” (2015 SCMR 1704). Thus, the respondents’ argument that the suit is barred by limitation is wholly without any merit, particularly when he neither raised the question of limitation in his written statement nor assailed the concurrent findings of both the courts below on this point, which categorically held that the suit was filed within the prescribed period of limitation. It is a settled principle of law that when finding on a material issue has attained finality and has not been specifically challenged in revision, the same cannot be reopened indirectly by raising arguments that run contrary to that finding. The unchallenged concurrent findings on limitation cannot be disturbed at a subsequent stage, the petitioner has sufficiently demonstrated that she acquired knowledge of the impugned mutation after the demise of the donor. Therefore, the plea of limitation is misconceived and deserves outright rejection.

17. As regards the respondents’ contention that the petitioner failed to plead particulars of fraud as required under Order VI Rule 4 CPC, this argument is misconceived. The record shows that the petitioner pleaded specific facts regarding fraud, collusion with the revenue staff, the physical incapacity of the donor, and forged thumb impressions. The petitioner/plaintiff also appeared as PW-1 and reaffirmed these facts on

oath, thereby discharging the initial burden. It was then for the donee to prove the genuineness of the Tamleek, which he failed to do.

18. A comparative and reasoned examination of both the judgments shows that the judgment and decree passed by the trial court is in accordance with law, fully supported by the evidence, and free from any legal infirmity or procedural irregularity. The trial court rightly held that the alleged Tamleek mutation was a device to deprive the legal heirs of their rightful inheritance and declared the transaction void. The appellate court erred in reversing these findings without any valid legal justification.

19. In view of the foregoing, this Court holds that the impugned judgment and decree dated 04.11.2010 passed by the learned Additional District Judge, Multan, suffer from serious legal flaws and is hereby set aside. Consequently, the judgment and decree dated 28.02.2009 passed by the trial court is restored in its entirety.

20. This civil revision is **allowed**. There shall be no order as to costs.

(Malik Javid Iqbal Wains)
Judge

Approved For Reporting

Judge

Announced in Open Court on .07.2025

Judge

Usman/Sharif*